

26NWCV00077 26NWCV00077

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-09-08

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CC%2C09%2F08%2F2026

Source SHA-256: 0348b5b3c33500ffdc81de898430c866bd99c8c8b8b8d4a63b6fc1bd73cd2478

Case Number: 26NWCV00077 Hearing Date: September 8, 2026 Dept: C

GREENFIELD vs THE
MCHUGH FAMILY TRUST

CASE NO.: 26NWCV00077

HEARING: 09/08/2026 @ 9:30 AM

#12

TENTATIVE ORDER

Defendant THE McHUGH FAMILY TRUST, dated August 23, 1994,
as amended and restated, by and through its co-trustees THERESA M. McHUGH,
PATRICIA McHUGH, and CELINA E. McHUGH's Motion for Attorney's fees is GRANTED
in the amount of \$28,252.66.

Moving party to give notice.

Defendant THE McHUGH FAMILY TRUST, dated August 23, 1994, as
amended and restated, by and through its co-trustees THERESA M. McHUGH,
PATRICIA McHUGH, and CELINA E. McHUGH (Defendant) moves for an award of
attorney's fees.

No opposition filed as of September 4, 2026.

Background

This is action concerns three parcels located

in Mayfield, Los Angeles County. Plaintiff executed a promissory note for \$1,000,000 to Defendant, secured by a Deed of Trust on the three parcels. (See Exhibits 1-2 to Request for Judicial Notice ("RJN").)

Plaintiff alleges that the promissory note only pertained to one parcel (and not all three), that the amount asserted on the Notice of Trustee's Sale was incorrect, and that there was an automatic stay under 11 U.S.C. § 362. (Complaint, ¶¶ 9, 33-36.)

Based thereon, the Complaint asserts causes of action for:

1.

DECLARATORY
RELIEF

2.

WRONGFUL
FORECLOSURE

3.

BREACH
OF SETTLEMENT AGREEMENT

4.

REFORMATION

5.

QUIET
TITLE

6.

ACCOUNTING

7.

INJUNCTIVE
RELIEF

On

January 15, 2026, this Court denied Plaintiff's ex parte request for a

Temporary Restraining Order to prevent the foreclosure of the properties, premised on his claim that his bankruptcy was reinstated on December 23, 2025, and the property thereby was subject to the automatic stay.

On

April 8, 2026, Court denied Plaintiff's ex parte request to set aside the trustee's sale conducted of March 9, 2026; cancelling the trustee's deed recorded on March 11, 2026; and issuing a TRO prohibiting transfer of the Subject Property.

On

April 22, 2026, Plaintiff filed a Notice of Appeal from this Court's order of April 8, 2026.

On

July 31, 2026, a Notice of Default was issued to Appellant Greenfield for failure to timely filed a proposed statement on appeal as required by CRC, rule 8.137(c)(1). The proposed statement must have been served and filed with Proof of Service per CRC, rule 8.25 by August 17, 2026. The record does not reflect the proposed statement was filed by the deadline.

Legal Standard

Civil Code section 1717 subdivision (a) provides, "[i]n any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs."

"Courts have uniformly held that the party moving for statutory attorney fees or sanctions has the burden of proof." (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247, citation omitted.) The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (Bruckman v. Parliament Escrow Co. (1989) 190 Cal.App.3d 1051, 1062.) When assessing the amount of any attorney's fee award, courts typically determine what is reasonable through the application of the "lodestar" method. Under the lodestar method, a base amount is calculated from a compilation of (1) time reasonably spent and (2) the

reasonable hourly compensation of each attorney. (Serrano v. Priest (1977) 20 Cal.3d 25, 48); see also Meister v. Regents of University of California (1998) 67 Cal.App.4th 437, 448-449 [holding that the lodestar method applies to statutory attorney fees award unless the underlying statute provides for another method of calculation].)

Discussion

Defendant moves for attorney's fees as the prevailing parties in this action pursuant to Civil Code section 1717 and a provision in the 2015 and 2021 Settlement Agreements entered into between the parties:

In the event that any action, proceeding, or relief is sought to enforce the terms of this Settlement Agreement, the prevailing party shall be entitled to reasonable attorney's fees and costs.

(Raucher Decl., Exh. 2.)

Defendant requests \$28,252.66 in attorney's fees for the following:

.

Responding to Greenfield's Ex Parte Application for a TRO (1/7/2026 – 1/15/2026): \$8,872.00.

.

Responding to the Complaint, including Demurrer (1/16/2026 – 5/14/2026): \$12,092.00.

.

Responding to Greenfield's Ex Parte Application to Set Aside Foreclosure (4/7/2026 – 4/8/2026): \$3,493.00.

.

Anticipated fees in connection with this Motion: \$3,000.00.

.

Total costs (excluding costs previously claimed

reported on the Memorandum of Costs): \$795.66.

Defendant supports this request with a declaration by Stephen Raucher, an officer of Reuben Raucher & Blum. Raucher declares that two attorneys worked on this matter: Raucher, with an hourly rate of \$750 per hour and Maria Hutt, an associate assigned to the case, with an hourly rate of \$375 per hour. (Raucher Decl., ¶ 24.) Raucher spent 26.8 hours and Hutt spent 10.3 hours. One paralegal at Reuben Raucher & Blum worked on this case. Her rate is \$215 per hour, and she has cumulatively spent 2.3 hours. The Court finds the hourly rates and time spent on prosecuting this action reasonable.

Plaintiff does not oppose this motion.

Accordingly, Defendant's motion for attorney's fees is GRANTED.